

		service does not indicate Hagop “Jack” Kofdarali’s relation to the client sufficient that show that service is proper upon this individual. As a result, the Court CONTINUES the motion to be relieved as counsel to July 14, 2026, at 10:00 a.m. in Department C25. Moving Attorney to file proof of service of the moving papers on the client. Said proof of service to be filed no later than nine (9) court days before the continued hearing date. In addition, Moving Attorney to lodge an updated proposed order reflecting the current trial date no later than nine (9) court days before the continued hearing date. The proposed order must be lodged with the court with the moving papers and specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (California Rules of Court, rule 3.1362(e).) Moving Party to give notice.
105	Safavi vs. Ghadiri 25-01522424	1. Motion for Judgment on the Pleadings 2. Case Management Conference Defendant Nasrin Ghadiri (“Defendant”) moves for judgment on the pleadings as to the first cause of action for breach of oral contract and second cause of action for promissory and constructive fraud on the grounds that: (1) the claims are barred by the statute of limitations, (2) a condition precedent was never satisfied and therefore no contractual duty to Plaintiff arose, and (3) the fraud based claims are legally deficient and duplicative. First, the Court finds that the motion complies with the timing requirements set forth in Code of Civil Procedure sections 438 and 439. (Code Civ. Proc., §§ 438, subd. (f)(2) and 439, subd. (a).) It does not appear that the meet and confer requirements were met but,

		from the record before it, the Court does not find that meet and confer efforts would be productive at this juncture. Next, “[t]he grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 438, subd. (d).) “Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” (Code Civ. Proc., § 438, subd. (d).) “The motion for judgment on the pleadings performs the function of a general demurrer.” (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.) “Therefore, it admits all material and issuable facts pleaded.” (Ibid.) A “motion for judgment on the pleadings, like a demurrer, raises only questions of law.” (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1065.) “In a case involving a motion for judgment on the pleadings, our Supreme Court has said: ‘[W]e treat the properly pleaded allegations of [the] complaint as true, and also consider those matters subject to judicial notice. [Citations.] ‘Moreover, the allegations must be liberally construed with a view to attaining substantial justice among the parties.’ [Citation.] ‘Our primary task is to determine whether the facts alleged provide the basis for a cause of action against defendants under any theory.’ [Citation.]’” (Mendoza v. Continental Sales Co. (2006) 140 Cal.App.4th 1395, 1401 [citing (Alliance Mortgage Co. v. Rothwell (1995) 10 Cal.4th 1226, 1232].) “The motion provided for in this section may be granted with or without leave to file an amended
--	--	---

	complaint or answer, as the case may be.” (Code Civ. Proc., § 438(h)(1).) A. REQUEST FOR JUDICIAL NOTICE Defendant requests judicial notice of two documents: (1) Certified translation of July 1, 2023 text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract, attached as Exhibit A and (2) Plaintiff's sworn declaration dated October 31, 2025, filed in Orange County Superior Court Case No. 30-2025-01520822-CL-UD-CJC, attached as Exhibit B. The request for judicial notice is DENIED as the Certified translation of July 1, 2023, text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract. This piece of evidence is not something that the Court may take judicial notice of and is not appropriate to consider when determining a motion for judgment on the pleadings. The request for judicial notice is GRANTED as to Plaintiff's declaration filed in Case No. 2025 01520822. “[P]leadings and declarations are records of a court of this state and therefore qualified for permissive judicial notice under Evidence Code section 452, subdivision (d).” (Tucker v. Pacific Bell Mobile Services (2012) 208 Cal.App.4th 201, 219.) B. CAUSES OF ACTION Based on the Court's interpretation of the operative Complaint, the Complaint contains two causes of action: (1) breach of oral contract and (2) promissory and constructive fraud. Defendant addresses an emotional distress claim, but based on the Court's reading of the Complaint, it appears that Plaintiff is
--	---